

Superhuman Customer Business Agreement

This Superhuman Customer Business Agreement (“**Agreement**”) is made between Superhuman Platform Inc., formerly known as Grammarly, Inc. (“**Superhuman**”), and STERIS (“**Customer**”). Superhuman and Customer may individually be referred to as a “**Party**” and collectively “**the Parties**”. This Agreement will govern Customer’s access and use of the Services and is effective as of the earliest date that Customer accesses the Services or executes an Order that references this Agreement (the “**Effective Date**”).

1. Provision and Use of the Superhuman Platform

1.1. Right to Use the Services. During the Subscription Term and subject to the terms of this Agreement and the applicable Order, Superhuman grants Customer the right to access and use the Services in accordance with the Documentation solely for Customer’s internal business purposes.

1.2. Use by Affiliates. Customer, at its sole discretion, may permit its Affiliate(s) to access and use Services purchased by Customer under an Order, provided that (a) such Affiliate accesses and uses the Services in compliance with all of the obligations imposed upon Customer under this Agreement (other than payment obligations), and (b) Customer remains responsible for the acts and omissions of such Affiliate(s). If a Customer Affiliate and Superhuman execute a separate Order (an “**Affiliate Order**”), (i) such Affiliate and Superhuman are deemed to have entered into a separate customer business agreement containing the terms of this Agreement with any reference to “Customer” meaning only such Affiliate (“**Affiliate Agreement**”) and (ii) that Affiliate Order shall be governed by the Affiliate Agreement. Customer is not permitted to resell access to the Services to any of its Affiliates without the prior written consent of Superhuman.

1.3. Access and Responsibility for End Users. Customer may create End User accounts for the Services in the numbers and types stated in the applicable Order. Each End User account must be designated for use by one individual only, except that an End User account can be transferred to a new individual if the individual previously associated with the account no longer requires access to the Services. Customer is responsible for ensuring that End Users comply with this Agreement and for maintaining the security of End Users’ login credentials. Customer must promptly notify Superhuman if it becomes aware of any unauthorized access to any End User’s login credentials or other unauthorized access to or use of the Services. Customer is responsible for providing all legally required notices and obtaining all consents necessary to allow Superhuman to provide the Services to End Users.

1.4. Changes to the Services. Customer acknowledges that the Services are regularly evolving and that Superhuman may modify the features and functionality of the Services. Notwithstanding the foregoing, Superhuman will not materially decrease the core functionality of the Services during the Subscription Term.

1.5. Purchase Through Reseller. If Customer purchases a subscription to Services from an authorized Superhuman reseller or partner (“**Reseller**”), then notwithstanding anything to the contrary set forth in this Agreement: (a) the terms of this Agreement will act as the end user license agreement, and in addition to Customer’s compliance with the Agreement, Customer’s right to access and use such Services is subject to the terms and conditions of Customer’s written agreement with the Reseller (“**Reseller Agreement**”); (b) Customer will execute all Orders directly with the Reseller and not Superhuman; and (c) the terms and conditions of Section 2 (*Payment Terms*) of this Agreement do not apply. Any refund, payments, or credits which Superhuman must provide to Customer in accordance with the terms of this Agreement will be provided by Superhuman to Reseller, and Customer acknowledges that it must seek such refunds, payments, and credits from Reseller only. Furthermore, Customer’s right to terminate or cancel the Services is solely as described in the Reseller Agreement, provided that nothing herein shall be interpreted as permitting Reseller to offer terms inconsistent with this Agreement. If the Reseller ceases at any time to be an authorized reseller of Superhuman’s, Customer’s continued use of the Services may be conditioned upon Customer executing a written agreement for such Services directly with Superhuman, and paying the outstanding Fees, if any, that Reseller did not remit to Superhuman on Customer’s behalf. Resellers are not authorized to modify this Agreement or make any promises or commitments on Superhuman’s behalf, and Superhuman is not bound by any obligations to Customer other than as set forth in this Agreement. Solely to the extent explicitly permitted by this Agreement or the

Reseller Agreement, Superhuman may temporarily suspend or terminate delivery of the Services to Customer upon notice at the written direction of Reseller.

1.6. Integrations.

1.6.1. Customer-Built Integrations. Subject to this Agreement and any limitations set out in the Order, Customer may, at its discretion, access and use Superhuman's developer tools to build integrations, agents, apps, packs, applications, code, plugins, content, services, or extensions that are designed to interoperate with the Services ("**Customer Integrations**"). The building and deployment of Customer Integrations is governed by the Superhuman Developer Terms found at <https://superhuman.com/legal/terms/developer> ("**Developer Terms**") and are incorporated herein by reference. To the extent there is a conflict between the Developer Terms and this Agreement, the Developer Terms will prevail.

1.6.2. Superhuman-Developed Integrations. Subject to this Agreement and any limitations set out in the Order, Customer may, at its discretion, purchase additional Superhuman-developed integrations, agents, apps, packs, applications, code, plugins, or extensions to the Services that interoperate with third-party services ("**Superhuman Offerings**") as add-ons to its then-current subscription to the Services via the Superhuman Marketplace (or other such methods or venues as Superhuman may designate from time to time). Use of Superhuman Offerings requires Customer to have (a) an active and relevant subscription to Services that supports Superhuman Offerings; and (b) an active subscription to the third-party service that interoperates with the applicable Superhuman Offerings (a "**Third-Party Subscription**"). Customer is responsible for ensuring the Third-Party Subscription allows Customer to access and use the Superhuman Offerings. Superhuman will have no liability or responsibility for Customer having to purchase additional or a different Third-Party Subscription to utilize the Superhuman Offerings. If Customer's Third-Party Subscription expires or is terminated, Customer's associated access and use of the Superhuman Offerings will automatically terminate, and Customer acknowledges that it will not receive a refund of any fees prepaid for the Superhuman Offerings. Unless explicitly stated otherwise, references to Services in this Agreement include Superhuman Offerings.

1.6.3. Third-Party Developed Integrations. Subject to this Agreement and any limitations set out in the Order, Customer may, at its discretion, purchase and use certain third-party developed and provided services, products, agents, apps, integrations, code, plugins, content, or extensions that interoperate with the Services, including (a) those made available via the Superhuman Marketplace or other such methods or venues as Superhuman may designate from time to time ("**Third-Party Offerings**"); (b) third-party service integrations made available through the Services dashboard or APIs; and (c) third-party products or services that Customer authorizes to access Customer's Services account using OAuth or other credentials (all of the foregoing, each and collectively, "**Third-Party Service(s)**"). Each Third-Party Service shall be exclusively governed by the terms of service, end user license agreement, privacy policies, and/or any other applicable terms and policies of the third-party provider of the Third-Party Service, as is agreed to between Customer and the third-party provider of the Third-Party Service ("**Third-Party Terms**"). Superhuman is not a party to the Third-Party Terms.

1.6.4. Payment for Third-Party Offerings. Third-Party Offerings may be offered free of charge or for a fee, either charged directly by the Third-Party Offerings provider or by Superhuman. When Superhuman charges Customer on behalf of a Third-Party Offerings provider, Customer acknowledges that Superhuman acts only as an intermediary in facilitating or collecting the applicable fees and taxes from Customer. All payment-related matters for Third-Party Offerings, including fee payment, renewal, and refund policies, are between the Customer and the Third-Party Offerings provider and are governed by the Third-Party Terms.

1.6.5. Integration Data Flow.

(a). For Customer Data. Certain Third-Party Services may require the Third-Party Service to access Customer Data, including Customer Personal Data (as defined in the DPA), in order to provide the Third-Party Services, as further described in the relevant Third-Party Terms. Customer acknowledges that the Third-Party Service developer will not be a Sub-processor (as defined in the DPA). By downloading, installing, enabling, or using a Superhuman Offering or a Third-Party Service, Customer instructs (pursuant to this Agreement and the DPA) Superhuman to provide, use, process, and transmit Customer Data to that relevant Third-Party Service (i) to enable interoperability of the Third-Party Service with the Services, (ii) for the provision of the Third-Party Service (including any customer support), and (iii) as otherwise in accordance with the applicable Third-Party Terms.

(b). For System Data and Account Information. By downloading, installing, enabling, or using a Superhuman Offering or a Third-Party Service, Customer directs and authorizes Superhuman to provide, use, process, and transmit System Data and Account Information to the relevant Third-Party Service (i) to enable interoperability of the Third-Party Service with the Superhuman Platform, (ii) for the provision of the Third-Party Service (including any customer support), and (iii) as otherwise in accordance with the Third-Party Terms. In such cases, Customer authorizes Superhuman and the applicable Third-Party Service developer to collect, analyze, and use data related to Customer's access and use of the Superhuman Offerings and Third-Party Services, including technical logs, metadata, user interactions, and user action statistics to facilitate the provision of software updates, and product support related to the Services ("**Integration System Data**").

1.6.6. Third-Party Services Disclaimer. SUPERHUMAN DOES NOT MAKE ANY REPRESENTATIONS, WARRANTIES, OR GUARANTEES REGARDING THIRD-PARTY SERVICES, INCLUDING, WITHOUT LIMITATION, THAT THE THIRD-PARTY SERVICES WILL FUNCTION PROPERLY WITH THE SERVICES. THIRD-PARTY SERVICES ARE MADE AVAILABLE ON AN "AS IS" AND "AS AVAILABLE" BASIS. SUPERHUMAN MAY CEASE PROVIDING ACCESS TO THEM AT ANY TIME, AND CEASING SUCH ACCESS WILL NOT ENTITLE CUSTOMER TO ANY REFUND, CREDIT, OR OTHER COMPENSATION FROM SUPERHUMAN. NOTWITHSTANDING ANYTHING ELSE IN THIS AGREEMENT, SUPERHUMAN WILL HAVE NO LIABILITY ARISING OUT OF OR IN CONNECTION WITH THIRD-PARTY SERVICES.

1.7. Beta Services. Superhuman may occasionally provide Customer access to new service offerings still in development ("**Beta Services**"). Superhuman will clearly designate all Beta Services as "alpha", "beta", "early access", or something similar within the Services or Documentation. Customer may choose to use these Beta Services at its sole discretion. Customer will treat the Beta Services and any related documentation as Superhuman's Confidential Information until Superhuman makes such information publicly available on its website. Customer acknowledges that Superhuman is under no obligation to support these Beta Services, and Beta Services may not be as secure or reliable as Superhuman's other Services. In Superhuman's sole discretion, Superhuman may change the functionality of the Beta Services and/or discontinue, suspend, or remove Customer's access to such Beta Services (including any Customer Data stored or processed within the Beta Services) and has no obligation to make such Beta Services generally available. NOTWITHSTANDING ANYTHING ELSE IN THIS AGREEMENT, SUPERHUMAN WILL HAVE NO LIABILITY ARISING OUT OF OR IN CONNECTION WITH BETA SERVICES.

1.8. Professional Services. From time to time, Customer may request that Superhuman provide professional services, including integration and/or customization services in connection with the Services ("**Professional Services**"). If the Parties agree to proceed with the requested Professional Services, they shall enter into a separate agreement that sets forth the specific terms and fees for such Professional Services.

2. Payment Terms

2.1. Fees. Customer will pay the fees for the Services ("**Fees**") described in the Order. Payment will be made in US dollars (unless another currency is specified in the Order). All payment obligations are non-cancellable, and Fees are non-refundable except as required by law or as expressly set out in this Agreement. Superhuman will send all invoices to the billing email address provided by Customer in the Order. Unless otherwise agreed to in writing by Superhuman, Superhuman will have no obligation to submit invoices to any vendor management portal or other similar system to obtain payment of the Fees.

2.2. Payment Timing; Billing Errors. The payment timing is described in the Order. If payment timing is not specified in the Order, Customer must pay all undisputed Fees within 30 days of Customer's receipt of Superhuman's invoice. To the extent permitted by applicable law, late payments are subject to a service charge of the lesser of 1.5% per month or the maximum amount allowed by law. If Customer believes the invoice contains an error ("**Billing Error**"), Customer must send a written notice to Superhuman describing the error in reasonable detail within 30 days of Customer's receipt of the disputed invoice. The Parties will use good faith efforts to resolve the Billing Error. If the Parties are unable to resolve the Billing Error within 60 days of Customer's receipt of the disputed invoice, then the Parties will be free to exercise any legal or contractual remedies available to them.

2.3. Taxes. Unless otherwise expressly specified in an Order and as required by applicable law, Fees are exclusive of any Taxes. Other than taxes on Superhuman's net income, Customer is responsible for paying any Taxes assessed in connection with Customer's subscription to the Service. Superhuman will invoice Customer for such Taxes if Superhuman believes it has a legal obligation to do so, and Customer agrees to pay such Taxes if so invoiced. If Customer claims exemption from any Taxes under this Agreement, Customer must provide Superhuman with a valid tax exemption certificate or tax ID at the time of Order, and after receipt of valid evidence of exemption, Superhuman will not include the Taxes on the relevant invoice to Customer.

2.4. Notice of Fee Changes. If Superhuman intends to change the Fees following the end of Customer's current Subscription Term, Superhuman will give Customer at least 30 days' notice of that change prior to the renewal of Customer's then-current subscription. Notwithstanding the foregoing, Customer acknowledges that Superhuman may not provide notice for any changes in Fees that occur due to a change in the fees charged by a Third-Party Service provider for a Third-Party Service.

2.5. Free Trials or Programs. If Customer registers for a free trial or program for Services, Superhuman will provide those Services to Customer on a trial basis free of charge until the earlier of (a) the end of the free trial or program period; (b) the start date of any paid subscription to such Services; or (c) termination of the free trial or program by either Party, in either's sole discretion.

3. Protection of Customer Data

3.1. Security. Superhuman has implemented appropriate technical and organizational measures to enable a level of security that is appropriate to reduce the risk of unauthorized or unlawful processing, accidental loss of, and/or damage to Customer Data. Superhuman will maintain a compliance program that includes independent third-party audits and certifications, including SOC 2.

3.2. Data Privacy and Data Privacy Addendum. To the extent that Customer Data includes any Personal Data, the Parties agree to comply with the Superhuman Data Privacy Addendum located at <https://www.superhuman.com/legal/dpa>, which is incorporated by reference into this Agreement (the "DPA"). To the extent that Account Information includes any Personal Data for which Superhuman is a data controller, Superhuman will collect and process that Personal Data in accordance with Superhuman's privacy policy.

3.3. Data Removal and Retention. During the Subscription Term, Customer will have the ability within its account settings to export and/or delete its Customer Data. Upon termination or expiry of this Agreement, Superhuman will, at the choice and written request of Customer, return to Customer and/or securely destroy all Customer Data in its possession or control in accordance with this Agreement, except (i) to the extent Superhuman is required by applicable law to retain some or all of the Customer Data, or (ii) for Customer Data that Superhuman has archived on backup systems, in which case, that Customer Data shall be securely isolated and protected from any further processing and shall be deleted by Superhuman in accordance with its data deletion practices.

3.4. HIPAA Data. Customer agrees not to submit any HIPAA Data to the Services unless it has entered into a BAA with Superhuman that covers the applicable Services within which Customer will submit HIPAA Data. Unless such a BAA is in place, Superhuman will have no liability under this Agreement for HIPAA Data, notwithstanding anything to the contrary in this Agreement, HIPAA, or any similar federal or state laws, rules, or regulations. Upon execution of a BAA, the BAA will be incorporated by reference into this Agreement.

4. Confidentiality

4.1. Definition. "Confidential Information" means information that a Party (or its Affiliate) discloses to the other Party (or its Affiliate) under this Agreement and which is marked as confidential or would normally be considered confidential information by a reasonable party under the circumstances. Confidential Information does not include information that (i) is independently developed by the recipient, (ii) is rightfully given to the recipient by a third party without confidentiality obligations, or (iii) becomes public through no fault of the recipient.

4.2. Restrictions on Use and Disclosure of Confidential Information. The recipient of Confidential Information will only use the disclosing party's Confidential Information to exercise its rights and fulfill its obligations under this Agreement and will use reasonable care to protect against the disclosure of the disclosing party's Confidential Information. The recipient may disclose Confidential Information only to its Affiliates, employees, agents, or professional advisors who need to know it and who have agreed in writing (or in the case of professional advisors are otherwise bound by a duty of confidentiality) to keep it confidential. The recipient of Confidential Information will ensure that those aforementioned people and entities use the received Confidential Information only to assist the recipient in its exercise of its rights and fulfillment of its obligations under this Agreement.

4.3. Required Disclosure. The recipient of Confidential Information may disclose Confidential Information to the extent required by applicable Legal Process if the recipient uses commercially reasonable efforts to (a) promptly notify the other Party of such disclosure before disclosing; and (b) comply with the other Party's reasonable requests regarding its efforts to oppose the disclosure, if doing so, in each case, is consistent with the Legal Process and does not obstruct a governmental investigation.

5. Intellectual Property Rights

5.1. Reservation of Intellectual Property Rights. As between the Parties, (a) Customer owns all Intellectual Property Rights in Customer Data; and (b) Superhuman owns all Intellectual Property Rights in the Services, Superhuman Offerings, Beta Services, Documentation, Integration System Data, and System Data. Except as expressly stated in this Agreement, this Agreement does not grant either Party any rights, implied or otherwise, to the other Party's content or intellectual property.

5.2. Right to Use Customer Data. Customer grants Superhuman and its Affiliates a worldwide, non-exclusive, limited right to use (including storing, processing, copying, transmitting, modifying, and displaying) Customer Data to provide, support, and protect the Services in accordance with this Agreement.

5.3. System Data. Superhuman will collect, use, analyze, and process System Data internally for its business purposes, including providing, maintaining, developing, and improving the Services.

5.4. Prohibition on Training AI Models. Superhuman (and its Affiliates) will not use Customer Data to train any generative artificial intelligence models without Customer's prior written consent.

5.5. Feedback. If Customer or its End Users provide Superhuman with any suggestions, enhancement requests, recommendations, or other feedback regarding the Services, Superhuman may use that feedback without restriction or obligation to Customer, and Customer hereby assigns all rights, title, and interest in such feedback to Superhuman.

5.6. Customer Reference. Superhuman may use Customer's name, logo, and marks to identify Customer as Superhuman's customer on Superhuman's website and in other marketing materials and activities, subject to any brand guidelines provided by Customer to Superhuman in writing. Upon Customer's written request, Superhuman will promptly remove Customer's name, logo, and any such marks from Superhuman's website and, to the extent commercially feasible, Superhuman's marketing materials.

6. Customer Obligations

6.1. Terminate Unauthorized Use. Customer will use commercially reasonable efforts to prevent and terminate any unauthorized use of or access to the Services. Customer will promptly notify Superhuman of any unauthorized use of or access to the Services of which Customer becomes aware.

6.2. Acceptable Use Policy. Customer agrees to comply with the Superhuman Acceptable Use Policy set forth at <https://www.superhuman.com/legal/acceptable-use> ("AUP").

6.3. Compliance with Laws; Export Compliance. Customer (a) will comply with all export and import laws in performing this Agreement; and (b) represents and warrants that it is not listed on any US government list of prohibited

or restricted parties or located in (or a national of) a country subject to a US government embargo or designated by the US government as a “terrorist supporting” country. Customer will not submit to the Services any data controlled under the US International Traffic in Arms Regulations.

7. Term, Termination, and Suspension

7.1. Subscription Term; Agreement Term. The term of Customer’s subscription to the Services will begin and end on the dates specified on the applicable Order (“**Subscription Term**”), unless earlier terminated in accordance with this Agreement. This Agreement starts on the Effective Date and terminates one calendar year after the end of all Subscription Terms unless terminated earlier in accordance with this Agreement.

7.2. Automatic Renewal. Unless otherwise stated in the applicable Order, (a) Customer’s subscription to the Services will automatically renew for a Subscription Term equivalent in length to the then-expiring Subscription Term; and (b) the Fees applicable to any subsequent Subscription Term will be Superhuman’s then-current rates for the Services at the time of such renewal.

7.3. Subscription Cancellation. Either Party may elect to terminate an Order at the end of the then-current Subscription Term by providing written notice to the other Party no less than 30 days prior to the end of such Subscription Term.

7.4. Termination. Either Party may terminate this Agreement, including any applicable Orders, if (a) the other Party materially breaches this Agreement and fails to cure that breach within 30 days after receipt of a written notice of the breach; or (b) the other Party ceases its business operations or becomes subject to insolvency proceedings. Superhuman may immediately terminate this Agreement if required by law or if Customer materially violates the AUP.

7.5. Suspension. Upon written notice to Customer, Superhuman may temporarily suspend Customer’s or any End User’s access to the Services (or any part thereof) if and while: (a) Customer’s use of the Superhuman Platform poses a significant risk to Superhuman’s customers, infrastructure, or security; (b) Customer’s payment of Fees to Superhuman (or, if applicable, to Reseller) is late; or (c) Customer is otherwise in material breach of this Agreement or the AUP.

7.6. Effect of Termination. Upon termination or expiration of this Agreement, Customer’s right to access and use the Services will cease on that same date. Unless Customer has requested Superhuman return and/or securely destroy all Customer Data in Superhuman’s possession or control prior to the end of the Subscription Term, Superhuman may elect, at its discretion, to (a) delete Customer’s End Users’ accounts, or (b) downgrade Customer’s End User accounts to a lower subscription tier. Customer acknowledges that upon downgrading to a lower tier, its End Users may lose access to certain features and functionality of the Services.

8. Warranties & Disclaimer

8.1. Mutual Warranties. Each Party represents and warrants to the other Party that: (a) it has the authority to enter into this Agreement; and (b) it shall comply with all applicable laws and regulations in connection with its performance of this Agreement, including in the provision of the Services (in the case of Superhuman) and in the access and use of the Services (in the case of Customer), which includes all applicable laws and regulations related to data privacy and international communications.

8.2. Customer Warranties. Customer represents and warrants that: (a) it has created and/or obtained the rights to and is using the Customer Data lawfully; (b) Customer Data does not violate any third party’s rights, including Intellectual Property Rights or privacy rights; and (c) Customer Data is free of all viruses, Trojan horses, and other malicious software elements that could interrupt or harm the Services.

8.3. Service Warranty. During the Subscription Term, Superhuman represents and warrants that the Services will perform in a manner that is materially consistent with the Documentation (“**Service Warranty**”). Customer may provide notice of a breach of the Service Warranty at any time by delivering a written, reasonably detailed description

of the observed failure to Superhuman. Upon receiving such notice, Superhuman will have 45 days to correct the breach of the Service Warranty. If Superhuman fails to do so within that period, Customer may then terminate the applicable Order immediately upon written notice to Superhuman, and Superhuman will provide Customer with a prorated refund of Fees for its unused subscription, measured from the date of the warranty failure notice. The foregoing is Customer's exclusive remedy and Superhuman's sole liability for breach of the Service Warranty.

8.4. Disclaimer about the Services. EXCEPT AS EXPRESSLY STATED IN THIS AGREEMENT, TO THE FULLEST EXTENT PERMITTED BY LAW, SUPERHUMAN, SUPERHUMAN'S AFFILIATES, AND SUPERHUMAN'S RESELLERS AND SUPPLIERS: (A) DO NOT MAKE ANY WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR USE, TITLE, NONINFRINGEMENT, OR THAT USE OF THE SERVICES, INCLUDING ANY OUTPUT GENERATED FROM THE SERVICES, WILL BE ACCURATE, ERROR-FREE, OR UNINTERRUPTED; (B) MAKE NO REPRESENTATION OR WARRANTY ABOUT THE DATA, CONTENT, OUTPUT, INSIGHTS, OR INFORMATION ACCESSIBLE THROUGH THE SERVICES OR DOCUMENTATION, INCLUDING THAT OUTPUT WILL BE UNIQUE TO CUSTOMER; AND (C) DO NOT WARRANT THAT THE OPERATION OF THE SERVICES WILL MEET CUSTOMER'S REQUIREMENTS.

9. Limitation of Liability

9.1. Limitation on Liability Amount. TO THE EXTENT PERMITTED BY APPLICABLE LAW AND SUBJECT TO **SECTION 9.3 (UNLIMITED LIABILITIES)**, EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT IS LIMITED TO THE FEES PAID OR PAYABLE BY CUSTOMER TO SUPERHUMAN (OR TO RESELLER, WHERE CUSTOMER PURCHASED ACCESS TO THE SERVICES FROM A RESELLER) IN CONNECTION WITH THIS AGREEMENT DURING THE TWELVE-MONTH PERIOD BEFORE THE EVENT GIVING RISE TO LIABILITY (UNLESS THAT AMOUNT IS ZERO DUE TO CUSTOMER PARTICIPATING IN A FREE TRIAL OR PROGRAM, IN WHICH CASE SUPERHUMAN'S TOTAL AGGREGATE LIABILITY WILL NOT EXCEED ONE HUNDRED DOLLARS). EXCEPT WHERE PROHIBITED BY LAW, NO CLAIM, REGARDLESS OF FORM, WHICH IN ANY WAY ARISES OUT OF THE AGREEMENT MAY BE MADE, NOR ACTION BASED UPON SUCH CLAIM BE BROUGHT BY CUSTOMER MORE THAN ONE (1) YEAR AFTER THE TERMINATION OR EXPIRATION OF THIS AGREEMENT.

9.2. Limitation on Indirect Liabilities. TO THE EXTENT PERMITTED BY APPLICABLE LAW AND SUBJECT TO **SECTION 9.3 (UNLIMITED LIABILITIES)**, NEITHER PARTY WILL HAVE ANY LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT FOR ANY (A) INDIRECT, CONSEQUENTIAL, SPECIAL, INCIDENTAL, OR PUNITIVE DAMAGES, OR (B) LOST REVENUES, COST OF REPLACEMENT SERVICES, PROFITS, SAVINGS, OR GOODWILL.

9.3. Unlimited Liabilities. EXCEPT AS OTHERWISE EXPRESSLY STATED IN THIS AGREEMENT, NOTHING IN THIS AGREEMENT EXCLUDES OR LIMITS EITHER PARTY'S LIABILITY FOR: (A) ITS FRAUD OR FRAUDULENT MISREPRESENTATION; (B) ITS INDEMNIFICATION OBLIGATIONS UNDER **SECTION 10 (INDEMNIFICATION)**; (C) ITS INFRINGEMENT OF THE OTHER PARTY'S INTELLECTUAL PROPERTY RIGHTS; (D) ITS PAYMENT OBLIGATIONS UNDER THIS AGREEMENT; OR (E) MATTERS FOR WHICH LIABILITY CANNOT BE EXCLUDED OR LIMITED UNDER APPLICABLE LAW.

10. Indemnification

10.1. Superhuman Indemnification. Superhuman will defend Customer against any third-party legal proceedings and will indemnify Customer against settlement amounts as well as damages and costs finally awarded in the third-party legal proceeding ("**Indemnified Amounts**") to the extent arising from an allegation that the Services or any Outputs therefrom, infringe the third party's Intellectual Property Rights. This indemnification obligation will not apply to the extent the underlying allegation arises from (a) Customer's breach of this Agreement; (b) a modification or combination of the Services by Customer with materials not provided by Superhuman under this Agreement, unless

such modification or combination is required by this Agreement; or (c) where the Services are provided to Customer under a free trial or program. The indemnification obligation for third-party infringement claims related to Output will not apply to the extent (x) the Customer Content used to generate the allegedly infringing Output independently infringes or misappropriates a third party's Intellectual Property Rights or could reasonably be expected to elicit infringing Output from the Service; (y) Customer modifies, uses or distributes the Output in a manner that is reasonably likely to infringe or misappropriate a third party's Intellectual Property Rights; or (z) a third party alleges that the Output violates that third party's trademark or other related rights.

10.2. Customer Indemnification. To the extent permitted by applicable law, Customer will defend Superhuman against any third-party legal proceedings and will indemnify Superhuman against Indemnified Amounts to the extent arising from (a) Customer Data or (b) Customer's and Customer's End Users' access or use of the Services in breach of this Agreement. Customer's indemnification obligations will not apply to the extent the underlying allegation arises from Superhuman's breach of this Agreement.

10.3. Notice Requirement. The indemnified party must promptly notify the indemnifying party in writing of any allegation(s) that preceded the third-party legal proceeding and cooperate reasonably with the indemnifying party to resolve the allegation(s) and third-party legal proceeding. With respect to any allegation that an Output infringes a third party's Intellectual Property Rights, Customer will use reasonable efforts to cease its use, display, and dissemination of such Output immediately upon receipt of notice of the allegation, and the parties will work together in good faith to mitigate any additional infringement claims. If breach of this notification obligation prejudices the defense of the legal proceeding, the indemnifying party's obligations will be reduced in proportion to the prejudice.

10.4 Sole Control Requirement. The indemnified party must give sole control of the indemnified portion of the third-party legal proceeding to the indemnifying party, subject to the following: (a) the indemnified party may appoint its own non-controlling counsel, at its own expense; and (b) any settlement requiring the indemnified party to admit liability, pay money, or take (or refrain from taking) any action, will require the indemnified party's prior written consent, which is not to be unreasonably withheld, conditioned, or delayed.

10.5 Remedies. If Superhuman reasonably believes the Services might infringe a third party's Intellectual Property Rights, then Superhuman may, at its sole option and expense (a) procure the right for Customer to continue using the Services; (b) modify the Services to make them non-infringing without materially reducing their functionality; or (c) replace the Services with a non-infringing, functionally equivalent alternative. If none of the foregoing remedies is reasonably feasible, as determined by Superhuman in its sole discretion, then Superhuman may terminate Customer's use of the Services and the impacted Order, and upon such termination, Superhuman will provide Customer with a pro-rata refund of prepaid and unused Fees for the Services.

10.6 Sole Remedy. Without affecting either Party's termination rights, this **Section 10** states the parties' sole and exclusive remedy under this Agreement for any third-party allegations of Intellectual Property Rights infringement.

11. Mandatory Arbitration

11.1. Arbitration Requirements and Procedures. Except with respect to enforcing claims for injunctive or equitable relief, any dispute, claim, or controversy arising out of or relating in any way to this Agreement or the interpretation, application, enforcement, breach, termination, or validity thereof (including any claim of inducement of this Agreement by fraud and including determination of the scope or applicability of this agreement to arbitrate) or its subject matter (collectively, "**Disputes**") will be determined by binding arbitration before one arbitrator. The arbitration will be administered by JAMS, conducted in accordance with the expedited procedures set forth in the JAMS Comprehensive Arbitration Rules and Procedures as those Rules exist on the date Customer first creates its account or accesses and/or uses the Services, including Rules 16.1 and 16.2 of those Rules. The arbitration will be held in San Francisco, California, and it will be conducted in English. The Parties will maintain the confidential nature of the arbitration proceeding and any award, including the hearing, except as may be necessary to prepare for or conduct the arbitration hearing on the merits or except as may be necessary in connection with a court application for a preliminary remedy, a judicial challenge to an award or its enforcement, or unless otherwise required by law or judicial decision. The arbitrator will have authority to award compensatory damages only and is not empowered to award any punitive, exemplary, or multiple damages, and the Parties waive any right to recover any such damages.

The Parties acknowledge that this Agreement evidences a transaction involving interstate commerce. Any arbitration conducted pursuant to the terms of this Agreement will be governed by the Federal Arbitration Act (9 U.S.C., Secs. 1-16). Each Party will be responsible for its respective fees, including attorneys' and experts' fees, in pursuing or defending a claim hereunder. Judgment on any award in arbitration may be entered in any court having jurisdiction. Nothing herein will preclude either Party from seeking provisional remedies in aid of arbitration from a court of appropriate jurisdiction.

11.2. No Class Actions. NEITHER PARTY MAY PURSUE ANY CLAIM AGAINST THE OTHER PARTY AS A CLASS ACTION, CLASS ARBITRATION, PRIVATE ATTORNEY GENERAL ACTION, OR OTHER REPRESENTATIVE ACTION. CLAIMS REGARDING ANY DISPUTE AND REMEDIES SOUGHT AS PART OF A CLASS ACTION, CLASS ARBITRATION, PRIVATE ATTORNEY GENERAL, OR OTHER REPRESENTATIVE ACTION MUST BE BROUGHT ON AN INDIVIDUAL (NON-CLASS, NONREPRESENTATIVE) BASIS.

11.3. Exception for Governmental Entities. Notwithstanding anything to the contrary in this Agreement, if Customer represents a governmental entity or institution subject to the law of a United States state that mandates different dispute resolution terms, governing law, or venue, Superhuman agrees to such state law requirements.

12. Miscellaneous

12.1. Authority to bind. Customer represents and warrants that (a) Customer has full legal authority and power to bind that organization or entity to this Agreement; (b) Customer has read and understands this Agreement; and (c) Customer agrees, on behalf of that entity or organization, to this Agreement.

12.2. Severability. If one or more of the provisions contained in this Agreement is held invalid, illegal, or unenforceable in any respect by any court of competent jurisdiction, such holding will not impair the validity, legality, or enforceability of the remaining provisions.

12.3. Assignment. Customer may not assign this Agreement, or Customer's rights or obligations under it, in whole or in part. Notwithstanding the foregoing, Customer may assign this Agreement to the surviving entity in connection with a merger, acquisition, or sale of all or substantially all of its assets by providing advance written notice to Superhuman. Superhuman may assign this Agreement and rights and/or obligations under it at its discretion, including to an Affiliate or in connection with a merger, acquisition, reorganization, or transfer of assets. Any other attempt to transfer or assign is void.

12.4. Entire Agreement. This Agreement, together with any applicable Order, constitutes the entire agreement between Customer and Superhuman with respect to its subject matter and supersedes any and all prior agreements, discussions, negotiations, and offers, whether verbal or in writing, related to this Agreement's subject matter. Excluding Orders, all terms and conditions in a vendor form, purchase order, or other business document used by either party will not amend or modify this Agreement; any such documents are for administrative purposes only.

12.5. No Third-Party Beneficiaries. This Agreement does not confer any benefits on any third party.

12.6. Conflicting Terms. If there is a conflict between the documents that make up this Agreement, the documents will control in the following order to the extent there is a conflict: the Order, the AUP, the DPA, and then this Agreement.

12.7. Governing Law. Except as set forth in **Section 11 (MANDATORY ARBITRATION)**, this Agreement and all disputes or claims (including procedural issues) between the Parties are governed by the laws of California, excluding California's conflict of laws rules. This Agreement will not be governed by the United Nations Convention on Contracts for the International Sale of Goods.

12.8. Force Majeure. Except for Customer's obligation to pay Fees owed, neither Party will be liable for failure or delay in performance to the extent caused by circumstances beyond its reasonable control, including acts of God, natural disasters, terrorism, riots, or war.

12.9. No Agency or Waiver. This Agreement does not create any agency, partnership, or joint venture between the Parties. Neither Party waives any rights by not exercising (or delaying the exercise of) any rights under this Agreement.

12.10. Notices. Superhuman will provide notices under this Agreement to Customer by sending an email to the email address Superhuman has on file for Customer. Customer will provide notices under this Agreement to Superhuman by sending an email to contract_notices@superhuman.com. Notice will be treated as received when the email is sent. Customer is responsible for keeping Customer's email address current throughout the Subscription Term.

12.11. Government Rights. To the extent applicable, the Services are "commercial computer software" or a "commercial item" for purposes of FAR 12.212 and DFARS 227.7202. To the extent permitted in this Agreement, use, reproduction, release, modification, disclosure, or transfer of the Services is governed solely by the terms of this Agreement, and all other use is prohibited.

12.12. Survival. Sections 2 (PAYMENT TERMS), 3 (PROTECTION OF CUSTOMER DATA), 4 (CONFIDENTIALITY), 5 (INTELLECTUAL PROPERTY RIGHTS), 7.6 (EFFECT OF TERMINATION), 9 (LIMITATION OF LIABILITY), 10 (INDEMNIFICATION), 11 (MANDATORY ARBITRATION), 12 (MISCELLANEOUS), 13 (DEFINITIONS), and any other sections that by their nature should survive termination will survive termination of this Agreement. Termination of this Agreement shall not limit a Party's liability for obligations accrued as of or prior to termination or for any breach of this Agreement.

12.13. Amendments; Modifications. No amendment, modification, or waiver of any provision of this Agreement will be valid unless mutually agreed upon in writing by the Parties. Any attempt to modify this Agreement other than as permitted herein will be void and of no effect.

13. Definitions

"Account Information" means information that Customer and its End Users provide to Superhuman in connection with the creation or administration of Customer's Superhuman account, including names, login credentials, phone numbers, email addresses, and billing information associated with Customer's Superhuman account.

"Affiliate" means any entity that directly or indirectly Controls, is Controlled by, or is under common Control with a Party.

"BAA" means an addendum to this Agreement covering the handling of HIPAA Data.

"Control(led)" means control of greater than fifty percent of the voting rights or equity interests of a party or the power to direct the management or operations of an entity.

"Customer Data" means (a) any files, software, scripts, multimedia images, graphics, audio, video, text, or other data submitted into the Services by Customer (including by an End User) either directly or through an integration, including text and images displayed within an application window ("**Customer Content**"); and (b) any outputs generated for Customer by the Services based on Customer Content ("**Outputs**"). Customer Data does not include Account Information and System Data.

"Documentation" means Superhuman's technical documentation and usage guides for the Services made available at <https://www.superhuman.com/support> or through the Services.

"End User" means an individual that Customer permits to use the Services, including Customer's and its Affiliate's employees, agents, contractors (and students, if applicable).

"HIPAA" and "HIPAA Data" mean, respectively, the Health Insurance Portability and Accountability Act of 1996, as amended and supplemented, and any patient, medical, or other protected health information regulated by HIPAA or any similar federal or state laws, rules, or regulations.

“**includes**” and “**including**” means including but not limited to.

“**Intellectual Property Rights**” means current and future worldwide rights under patent, copyright, trade secret, trademark, and moral rights laws, and other similar rights.

“**Legal Process**” means any information disclosure request made under law, governmental regulation, court order, subpoena, warrant, or other valid legal authority, legal procedure, or similar process.

“**Liability**” means any liability, whether under contract, tort (including negligence), or otherwise, regardless of whether foreseeable or contemplated by the Parties.

“**Order**” means Superhuman’s order form or other ordering document agreed to between Superhuman and Customer, or, where applicable, an ordering document made between Customer and a Reseller through which Customer has procured the access and use of the Services.

“**Personal Data**” means any data that is protected as “personal data,” “personal information,” or “personally identifiable information” under applicable data privacy laws and regulations.

“**Services**” means the services described in an Order, including any software provided by Superhuman to access the services, and any updates and modifications that Superhuman makes to them from time to time.

“**Superhuman Marketplace**” means a Superhuman-managed online directory where integrations, agents, apps, packs, applications, code, plugins, content, services, or extensions that are designed to be used with the Services may be made available to Customer and its End Users, which is currently available at <https://superhuman.com/store/agents>.

“**System Data**” means data collected or generated by Superhuman during the provision and administration of the Services, for instance technical logs, metadata, user interaction with the Services, and user action statistics.

“**Taxes**” means any taxes, levies, duties or similar governmental assessments, including value-added, sales, use or withholding taxes assessable by any local, state, provincial, or national jurisdiction (whether domestic or foreign).

STERIS

Superhuman Platform Inc.

Signature:

Signature:

Name:

Name:

Title:

Title:

Date:

Date: